



Review Sheet



Last
Reviewed
21 Jan 2026

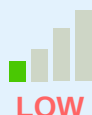


Last
Amended
21 Jan 2026



This policy will be reviewed as needs require or at the following interval:
Annual

Business Impact:



Minimal action required. Circulate information amongst relevant parties.

Reason for this Review:

Scheduled review

Changes Made:

Yes

Summary:

This policy explains how to protect the Individuals's privacy. It has been reviewed with some changes to sections 5.1, 5.5, 5.7, 5.8, 5.9. The references and further reading links have been checked and updated.

Relevant Legislation:

- Care Act 2014
- Equality Act 2010
- The Health and Social Care Act 2008 (Regulated Activities) Regulations 2014
- Human Rights Act 1998
- Mental Capacity Act 2005
- Data Protection Act 2018
- UK GDPR

Underpinning Knowledge:

- Author: ICO, (2025), UK GDPR guidance and resources [Online] Available from: <https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/> [Accessed: 21/01/2026]
- Author: Skills for care, (2025), Care Certificate [Online] Available from: <https://www.skillsforcare.org.uk/Learning-development/Care-Certificate/Care-Certificate.aspx> [Accessed: 21/01/2026]
- Author: Care Quality Commission, (2025), Regulation 10: Dignity and respect [Online] Available from: <https://www.cqc.org.uk/guidance-providers/regulations-enforcement/regulation-10-dignity-respect> [Accessed: 21/01/2026]
- Author: Care Quality Commission, (2023), Using cameras or other recording equipment to check somebody's care [Online] Available from: <https://www.cqc.org.uk/contact-us/report-concern/using-cameras-or-other-recording-equipment-check-somebodys-care> [Accessed: 21/01/2026]
- Author: NHS Digital, (2025), Data Security and Protection Toolkit [Online] Available from: <https://www.dsptoolkit.nhs.uk/> [Accessed: 21/01/2026]

Suggested Action:

- Encourage sharing the policy through the use of the QCS App



Equality Impact Assessment:

QCS have undertaken an equality analysis during the review of this policy. This statement is a written record that demonstrates that we have shown due regard to the need to eliminate unlawful discrimination, advance equality of opportunity and foster good relations with respect to the characteristics protected by equality law.

Quality Compliance Systems
CS Hub Limited
Downloaded: 16 June 2026
Jigyasa Pahwa



1. Purpose

1.1 To support the human rights of the Individuals and ensure that CS Hub Limited complies with legislation and regulation in relation to the privacy of individuals.

1.2 This policy covers the day-to-day considerations of ensuring privacy whilst supporting Individuals. This policy should be read in conjunction with the suite of associated policies and procedures at CS Hub Limited such as UK GDPR in relation to data protection information sharing.

1.3

Key Question

Quality Statements

CARING	QSC1: Kindness, compassion and dignity
CARING	QSC1: Kindness, compassion and dignity QSC3: Independence, choice and control
RESPONSIVE	QSR1: Person-centred care
SAFE	QSS3: Safeguarding
WELL-LED	QSW1: Shared direction and culture QSW2: Capable, compassionate and inclusive leaders

1.4 Relevant Legislation

- Care Act 2014
- Equality Act 2010
- The Health and Social Care Act 2008 (Regulated Activities) Regulations 2014
- Human Rights Act 1998
- Mental Capacity Act 2005
- Data Protection Act 2018
- UK GDPR



2. Scope

2.1 Roles Affected:

- All Staff

2.2 People Affected:

- Individuals

2.3 Stakeholders Affected:

- Family
- External health professionals
- Local Authority

- NHS



3. Objectives

3.1 To reinforce the requirement, in accordance with professional codes of conduct, to ensure that privacy is maintained as per the Individuals's wishes.

3.2 To provide clarity and standard practice recommendations to staff at CS Hub Limited to ensure that Individuals have dignity and privacy when they need and want it. This policy is fully aligned with:

- Health and Social Care Act 2008 (Regulated Activities) Regulations 2014
- Regulation 10: Dignity and Respect

3.3 To ensure that Individuals', employees' and stakeholders' personal data and information is treated with the same level of protection around privacy.



4. Policy

4.1 CS Hub Limited recognises the right of Individuals to be left alone, undisturbed and free from intrusion and public attention. The Individuals also has a right to privacy with regard to their personal affairs, data and their belongings.

4.2 Staff will adhere to the human rights of individuals and work in accordance with professional codes of conduct, the Information Commissioner's Office (ICO) guidance, UK GDPR and Data Protection Policies and Procedures at CS Hub Limited.

Intentional breaches of privacy will be fully investigated with appropriate bodies informed and lessons learnt.



5. Procedure

5.1 Care Planning at the Start of a Service

- The needs of the Individuals regarding privacy will always be considered during the pre-service visit assessment stage to ensure that CS Hub Limited can effectively meet the person's needs
- This assessment will include what information about them can be shared and with whom. This includes the Individuals providing formal consent to share information. Where capacity is an issue, the principles of the Mental Capacity Act and associated best interest guidance will be followed
- Preferred Individuals wishes must be communicated to other relevant staff at CS Hub Limited
- Where possible, the pre-service assessment process will be completed in a private area where the Individuals can feel able to discuss areas of their care needs. This is particularly relevant if an assessment is taking place in a hospital or respite setting prior to discharge home



CS Hub Limited

CS HUB LTD Pluto House, 6 Vale Avenue, Tunbridge Wells, TN1 1DJ

- The pre-service assessment will be used to form the basis of the Care Plan.

5.2 Individuals Rights

- Individuals choices in relation to privacy will be respected at all times and all information relating to them will be treated in a confidential manner
- CS Hub Limited recognises the right of Individuals to be left alone, undisturbed and free from intrusion and public attention. The Individuals also has a right to privacy with regard to personal data and both personal affairs and belongings

5.3 Staff Expectation, Behaviour and Professionalism

- Staff will follow professional codes of conduct as well as operational policies and procedures at CS Hub Limited when considering privacy for Individuals. This includes all staff expectations around professionalism of communication
- Staff will only discuss Individuals in the work environment if it is for the purpose of assessment, management and evaluation of care
- Staff will not discuss any aspect of the Individuals's care outside of the work environment

5.4 Records Management

- Records will be designed, used and stored in a manner which assures privacy
- Records will only be made available to the Individuals's family and main Care Worker according to the wishes of the Individuals or if information requests fulfil the legal requirements for doing so
- Staff can refer to the Record Keeping Policy and Procedure for further information and guidance
- Information sharing with appropriate health professionals will be done in line with UK GDPR and Data Protection Policies and Procedures at CS Hub Limited

5.5 Personal Care and Privacy

- Particular attention will be given to preserving privacy during the use of bathrooms, toilets and when supporting any aspect of personal care. At the same time, health and safety and personal risk management will be considered and discussed
- Staff will ensure, with Individuals consent, that curtains/blinds/doors are closed in order to ensure privacy during personal care and moving and handling
- Any personal and sensitive items that may be deemed necessary such as care equipment (for example continence aids, catheters, dressings) will be kept out of view at all times to ensure that privacy is maintained
- Staff will always knock on the Individuals's door and await a response before entering the room. Privacy will be respected around the Individuals's home at all times

5.6 Photography and Filming

Staff can refer to the policies available with regard to privacy, photography, filming and the use of CCTV at CS Hub Limited and to relevant CQC guidance.

5.7 Breach in Privacy

- Any breach in the privacy of the Individuals will be considered a serious event. The incident will be fully investigated in accordance with UK GDPR, Data Protection Policies and Procedures at CS Hub Limited and there will be evidence available about what has been learnt to ensure that the risk of reoccurrence is reduced. Disciplinary action will be taken where the incident is considered to have been caused with intent
- Any environmental or equipment fault which reduces the privacy of any Individuals must be reported to the Registered Manager or senior member of staff

- Breaches of privacy of a serious nature will be referred to the local Safeguarding Board and appropriate regulatory body notifications will be completed by Garikai Mungwariri or delegated other, who has the relevant skills, knowledge and experience

5.8 Training and Education

- Privacy forms part of the Care Certificate for care workers. New staff will be assessed on this and those who have not already completed this will be expected to achieve this unit
- Staff will be expected to review their professional code of conduct and be aware of what this means in practice
- Training will be given with regard to UK GDPR and Data Security and Protection
- Privacy will form part of the supervision process agenda at CS Hub Limited as well as at staff and Individuals meetings in order to review practice, seek feedback and determine quality assurance

5.9 Capacity and Privacy

The same rights of privacy apply to people who are proven to lack capacity, therefore staff must do the following:

- Establish any previously expressed views or wishes of the individual regarding privacy from family and others
- Observe Individuals behaviours to identify what the preferences may be for that person wishing to have privacy
- Continue to follow the core principles and practices as detailed within this policy, if deemed to be in the best interests of the Individuals to do so (in accordance with the Mental Capacity Act) when weighing up privacy. Refer to associated policies and procedures for further guidance



6. Definitions

6.1 Privacy

- In literal terms, privacy is defined as a state in which one is not observed or disturbed by other people, or the state of being free from public attention
- For the purposes of health and social care, privacy is very personal and means different things to different people. Therefore in order to respect people, privacy services need to be personalised as much as possible

6.2 Care Certificate

- The Care Certificate identifies a set of standards that social care and health workers follow. It describes the minimum standards that should be covered as part of the induction training of new care workers

6.3 Human Rights

- Human rights are the basic rights and freedoms that belong to every person in the world, from birth until death. They apply regardless of where you are from, what you believe or how you choose to live your life. They can never be taken away, although they can sometimes be restricted; for example, if a person breaks the law, or in the interests of national security
- These basic rights are based on values like dignity, fairness, equality, respect and independence. But human rights are not just abstract concepts, they are defined

and protected by law. In Britain our human rights are protected by the Human Rights Act 1998

6.4 Information Commissioner's Office

- The ICO is the UK's independent body set up to uphold information rights in the public interest
- This covers the following legislation:
 - Data Protection Act
 - Freedom of Information Act
 - Privacy and Electronic Communications Regulations
 - General Data Protection Regulation (UK GDPR)
 - Environmental Information Regulations
 - INSPIRE Regulations
 - eIDAS Regulation
 - Re-use of Public Sector Information Regulations
 - NIS Regulations
 - Investigatory Powers Act



7. Key Facts - Professionals

Professionals providing this service should be aware of the following:

- It is a fundamental right for everyone to have privacy and as professionals, your role is to promote and adhere to this right
- Your professional codes of conduct refer to your accountability in relation to supporting people with maintaining privacy
- The environment where Individuals are supported needs to accommodate the ability to promote privacy
- Any breach of a person's privacy is a serious event and will be fully investigated to ensure there is a period of learning, reflection and change in practice



8. Key Facts - People Affected by The Service

People affected by this service should be aware of the following:

- You have full rights to privacy. Staff will discuss what your wishes are around this and what that means for you
- Information about you will only be shared with your permission, or if you are unable to give permission, when it is deemed to be in your best interest to do so
- Staff supporting you will respect your privacy wishes and support you in providing environments that are private



Further Reading

Many further reading resources combine best practice of privacy with dignity and respect, the following sites contain further information and guidance for health and social care professionals:

Dignity in Care - Getting the Basics Right:

https://www.dignityincare.org.uk/Resources/Useful_resources_for_Dignity_Champions/Dignity_Map/getting_the_basics_right/

Dignity in Care - Privacy:

https://www.dignityincare.org.uk/Resources/Respecting_dignity/Privacy/

NICE Guidelines: Home Care - delivering personal care and practical support to older people living in their own homes:

<https://www.nice.org.uk/guidance/ng21/chapter/Recommendations>



Outstanding Practice

To be "outstanding" in this policy area you could provide evidence that:

- Staff follow the principles and practices of this policy
- Individuals are provided with an opportunity to feedback their experiences in relation to privacy in order for practice review and quality assurance
- Privacy forms a core agenda item for staff meetings, training and supervisions
- Regular audits take place that review the privacy practices at CS Hub Limited
- The wide understanding of the policy is enabled by proactive use of the QCS App